Master Services Agreement

Agreement No. SYN-COST-003

between **Brightwater Labs s.r.o.**, Vinohradska 2133/112, 130 00 Prague 3, Czech Republic, company ID 19283746 (the "Customer")

and **Orion Engineering a.s.**, Kounicova 271/13, 602 00 Brno, Czech Republic, company ID 28374651 (the "Supplier")

1. Interpretation

1.1 In this Agreement, "Services" means the engineering services described in each Statement of Work ("SOW") entered into under this Agreement.

1.2 If there is a conflict, the following order of precedence applies: (a) this Agreement; (b) the Schedules; (c) the relevant SOW, unless the SOW expressly states that it overrides a named clause of this Agreement.

2. Framework

2.1 This Agreement sets out the terms on which the Supplier provides Services under SOWs. It does not oblige the Customer to order any Services.

2.2 Each SOW forms a separate contract incorporating the terms of this Agreement.

3. Term

3.1 This Agreement commences on 1 July 2025 and continues for an initial period of three (3) years, ending on 30 June 2028.

3.2 Thereafter this Agreement renews automatically for successive periods of twelve (12) months unless either party gives notice of non-renewal at least one hundred and eighty (180) days before the end of the current period.

4. Supplier obligations

4.1 The Supplier shall perform the Services with reasonable skill and care, in accordance with good industry practice and the applicable SOW.

4.2 The Supplier shall assign suitably qualified personnel and shall not replace key personnel named in a SOW without the Customer's consent, which may not be unreasonably withheld.

4.3 The Supplier shall comply with the Customer's site, security and information-handling policies notified in writing.

5. Customer obligations

5.1 The Customer shall provide timely access to information, premises and systems reasonably required by the Supplier.

5.2 The Customer shall nominate a contract manager for each SOW.

6. Charges and payment

6.1 The charges for the Services are calculated on a time-and-materials basis using the day rates in Schedule 1 unless a SOW sets a fixed price.

6.2 The Supplier shall invoice monthly in arrears. Invoices are payable within forty-five (45) days of receipt.

6.3 Late payments bear statutory interest under the laws of the Czech Republic.

6.4 The day rates are fixed until 30 June 2026 and may then be increased once a year by no more than the annual change in the Czech consumer price index published by the Czech Statistical Office.

7. Change control

7.1 Either party may request a change to a SOW. No change is effective until a change note is signed by both parties.

7.2 The Supplier shall respond to a change request within ten (10) business days with an impact assessment covering cost, timeline and risk.

8. Acceptance

8.1 Deliverables are subject to acceptance testing against criteria in the SOW. The Customer shall notify acceptance or rejection within fifteen (15) business days of delivery.

8.2 If the Customer does not respond within that period the deliverable is deemed accepted.

9. Intellectual property

9.1 Intellectual property in deliverables created specifically for the Customer vests in the Customer on payment of the relevant charges.

9.2 The Supplier retains ownership of its pre-existing materials and grants the Customer a perpetual, non-exclusive licence to use them as part of the deliverables.

10. Warranties

10.1 The Supplier warrants that deliverables will materially conform to their specification for ninety (90) days after acceptance.

10.2 The Supplier's sole obligation for breach of clause 10.1 is to correct the non-conformity without charge.

11. Indemnities

11.1 The Supplier shall indemnify the Customer against third-party claims that the deliverables infringe intellectual property rights, subject to the conditions in clause 11.2.

11.2 The indemnified party shall notify the claim promptly, allow the indemnifying party to control the defence and provide reasonable assistance.

12. Limitation of liability

12.1 Each party's aggregate liability arising under or in connection with this Agreement in any contract year is limited to EUR 750,000 (seven hundred and fifty thousand euros).

12.2 Neither party is liable for loss of profit, revenue, goodwill or for indirect or consequential loss.

12.3 Nothing in this Agreement limits liability for fraud, wilful misconduct, gross negligence or death or personal injury caused by negligence.

13. Insurance

13.1 The Supplier shall maintain professional indemnity insurance of at least EUR 2,000,000 per claim and public liability insurance of at least EUR 5,000,000 per claim.

14. Termination

14.1 Either party may terminate this Agreement for convenience by giving not less than one hundred and twenty (120) days' written notice. Termination does not affect SOWs in progress unless stated in the notice.

14.2 Either party may terminate this Agreement or any SOW with immediate effect if the other party commits a material breach and fails to remedy it within thirty (30) days of written notice, or becomes insolvent.

14.3 The Customer may terminate this Agreement by notice within ninety (90) days after a change of control of the Supplier.

14.4 On termination the Supplier shall deliver all work in progress and Customer materials and the Customer shall pay for Services performed up to the termination date.

15. Exit assistance

15.1 For up to six (6) months after termination the Supplier shall provide reasonable exit assistance at the day rates in Schedule 1.

16. Non-solicitation

16.1 During the term and for twelve (12) months after it, neither party shall solicit employees of the other party engaged in the Services.

17. Confidentiality

17.1 Each party shall keep the other party's Confidential Information confidential and use it only for the purposes of this Agreement.

17.2 The obligations in this clause 17 survive termination or expiry of this Agreement for five (5) years.

18. Data protection

18.1 Where the Supplier processes personal data on behalf of the Customer, the parties shall enter into the data processing agreement set out in the applicable schedule, which complies with Article 28 of Regulation (EU) 2016/679.

19. Assignment

19.1 Neither party may assign or transfer this Agreement without the prior written consent of the other party, except to an affiliate in connection with a reorganisation.

20. Notices

20.1 Notices under this Agreement must be in writing and delivered by hand, by courier or by email with confirmation of receipt to the addresses stated above.

21. Anti-bribery

21.1 Each party shall comply with applicable anti-bribery and anti-corruption laws.

22. Force majeure

22.1 Neither party is liable for delay caused by events beyond its reasonable control, provided it notifies the other party promptly and mitigates the effects.

23. Entire agreement

23.1 This Agreement and the SOWs constitute the entire agreement between the parties regarding their subject matter.

24. Governing law and disputes

24.1 This Agreement is governed by the laws of the Czech Republic.

24.2 Any dispute shall be finally resolved by the Arbitration Court attached to the Czech Chamber of Commerce and the Agricultural Chamber of the Czech Republic, under its rules, by three arbitrators, in Prague.

Schedule 1 - Day rates

Role	Day rate (EUR)	Notes
Principal engineer	1,450	Architecture and design authority
Senior engineer	1,150	Default delivery role
Engineer	890	Delivery
Test engineer	760	Verification and validation
Project manager	980	Per SOW
Technical writer	640	Documentation

Schedule 2 - SOW template

Each SOW shall state: scope; deliverables and acceptance criteria; key personnel; timeline and milestones; charges and invoicing; dependencies; and any terms that override this Agreement, naming the clause overridden.

Signatures

Signed on 24 June 2025.

For Brightwater Labs s.r.o.	For Orion Engineering a.s.
Name: Jana Novakova, Managing Director	Name: Tomas Berger, Director
Signature: /signed/	Signature: /signed/